

and upon which your verdict will depend, I will draw your attention to that which was last alluded to by the counsel for the plaintiff, viz. whether the vice-chancellor could lawfully commit the plaintiff without a warrant; and whether the Spinning House was a fit and convenient place for him to commit to, and whether the change of the plaintiff's clothes to the prison dress was reasonable discipline. As to the committing without a warrant, it is my duty to tell you that no warrant at all was necessary, but that the vice-chancellor had authority to hear the parties, and to make the committal by word [537] of mouth. As to whether the gaol was a fit and proper place, and the change of clothes a reasonable discipline, I shall leave you to say: but still I should submit to your consideration, that, if the authorities at Cambridge have the right to commit, and the place in question has been a known prison of the university as far back as memory can go, and that prison is regulated by the secretary of state and under the surveillance of the government inspector, it would be a very strong thing to say that the vice-chancellor of the university can be made liable in trespass for committing a party to a gaol so regulated and so inspected. Whatever may be the result of your opinion upon the two main points, I will ask you to say what damages you think the plaintiff entitled to in case the vice-chancellor has not power to commit without a warrant: and, in that case, I will reserve leave to the plaintiff to move to enter the verdict for her for such damages as you may contingently assess.

I now proceed to address myself to the main points for your consideration. The plaintiff complains that she was unlawfully imprisoned by the defendant. The defendant for his justification relies upon the charter of Queen Elizabeth, which, being confirmed by act of parliament, is as much the law of the land as any other law, — that is, for the local government of Cambridge. Now, by the words of that charter or law, it is provided, amongst other things, that "it shall be lawful for the vice-chancellor and his successors, by themselves and by their deputies and servants from time to time, as well by night as by day, at their pleasure, to make scrutiny, search, and inquiry in the town of Cambridge and in the suburbs for all common women, vagabonds, and other persons suspected of evil, coming into the town:" and then the charter goes on to say that all persons who upon such search shall be [538] found guilty or suspected of evil, they may imprison by their bodies as they shall think fit. The reason of the law it is only material to consider in so far as it bears upon its interpretation. Considering the age and condition of the persons who are assembled at the university, it is obvious that somewhat stringent regulations were necessary to protect and control their intercourse with the rest of the world while intrusted to its care, — and especially to guard them against that species of attraction to which the words of the charter I have adverted to more particularly point: and this may well account for the very wide expressions used, not confining it to common women and vagabonds," but extending the power given to the vice-chancellor and his officers to "persons suspected of evil." I need not, however, commit myself to an exact exposition of the law contained in this charter, because the legal advisers of the defendant have expressly stated in the pleas which have been put upon the record the construction of it upon which they rely. The allegation in the third and more material plea is, that the proctors, "being officers and servants of the said chancellor, masters, and scholars, and by their command, having, upon a certain scrutiny, search, and inquiry in the aforesaid town and suburbs of Cambridge, found the plaintiff and divers other woman assembled together in a certain carriage, in company with certain scholars of the said university, in a certain public street in the said town, and then reasonably suspecting the plaintiff of evil, that is to say, of so being in company with the said scholars for idle, disorderly, and immoral purposes, had, as such officers and servants, and by such command, arrested and apprehended the plaintiff, and brought her before the defendant, then being the vice-chancellor of the said university, in order for her examination touching and concerning the premises," &c.

[539] [His Lordship then proceeded to observe upon the evidence to support that plea, remarking that all the material allegations therein were established by the statement of the plaintiff herself, except that which related to the plaintiff's being found in company with the scholars for idle, disorderly, and immoral purposes, and so being reasonably suspected of evil: and he told them, that, in order to sustain the plea, it was not necessary that there should have been a preconcerted intention on the part of all or any of the parties concerned to commit any immorality: but that it was enough if the circumstances in which they were found were such as fairly to